

ORDER SHEET

Case No. CrI. Misc. No.7200/B/2015

Versus

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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3. The brief prosecution story, according to the narration available in the crime report, is that on 15.03.2015 at about 12:00 noon, 500/600 persons while armed with blunt weapons blocked the main Ferozpur Road. When police party reached

at the spot, these people started throwing stones upon them. The assailants caught hold of Muhammad Ashraf, SI and with an intent to set him on fire, sprinkled kerosene oil on him who was rescued by the other police officials. The assailants also caused damage to Metro Bus Station and the police vehicle.

4. Arguments heard. Record perused.

5. None of the petitioners has been specifically nominated in the FIR. Identification of the petitioners during test identification parade is to be looked in by the learned trial court after recording the evidence because of the fact that admittedly, petitioners were initially taken into custody by the police under Section 54 Cr.P.C on the basis of CCTV Camera footage. Nothing has been recovered at the instance of petitioner Edward Naseer. The recoveries of sticks and clubs of common pattern only, at the instance of rest of the petitioners are prima-facie, not sufficient to connect them, with the alleged offence. However, the case of Imran petitioner is on different footing from that of rest of the petitioners as to his extent the prosecution case finds corroboration from the recovery of a valuable PDA device of damaged Metro Bus Station, which was looted during the occurrence that has been got recovered by him during his physical custody with the Investigation Agency. This recovery of supra mentioned device at the instance of Imran petitioner, prima-facie, connects him with the alleged offence and makes his case distinguishable from that of his co-accused. In this view of the matter, we are of the opinion that except Imran, petitioner in Crl. Misc. No.7145/B/2015, all other petitioners have made out their case one of further inquiry entitling them for the grant of post arrest bail under subsection (2) of Section 497 Cr.P.C.

For what has been discussed above, the afore-referred bail petitions to the extent of petitioners Edward Naseer, Riaz Masih, Nazir Masih, Tariq Masih, Arshad Masih, Asif Masih, Ishfaq Masih, Tariq, Naeem Bhatti and Yousaf Masih are accepted and they are admitted to post arrest bail subject to their furnishing bail bonds in the sum of Rs.2,00,000/-each with two sureties each in the like amount to the satisfaction of learned trial Court, whereas bail petition bearing Crl. Misc. No.7145/B/2015 to the extent of Imran petitioner, is dismissed.

(Muhammad Anwaarul Haq)
Judge

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting.

Judge

Judge

Nazir